

M/S Shiv Bhog Aanta Mill/Chakki v. Managing Director, U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · WRIT - C No. 18351 of 2022 · **Writ disposed; 6.8 objection to be decided; coercive action stayed.**

HEADNOTE

Writ challenging a 16.03.2022 revenue assessment/recovery order and seeking restoration of a connection disconnected on 20.11.2021 is disposed of without opinion on merits. The consumer may file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; respondent no. 2 shall decide it after hearing, preferably within four weeks. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner, M/S Shiv Bhog Aanta Mill/Chakki, challenged a revenue assessment and recovery order dated 16.03.2022 issued by the Executive Engineer, Dachhinanchal Vidyut Vitran Nigam Limited, Agra, and sought restoration of its electricity connection disconnected on 20.11.2021. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period. The High Court did not examine the assessment or the disconnection on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection-to-assessment-as-alternate-remedy

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks; if so submitted, it shall be decided in accordance with law, preferably within four weeks, after reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed a Para 6.8 objection to the 16.03.2022 demand to be decided after hearing, preferably within four weeks, and stayed coercive action for eight weeks or until that disposal. ¶ 1

assessment-6.8-alternate-remedy The writ was disposed of without merits after the licensee stated that an objection to the demand would be decided in a time-bound manner, relegating the consumer to Para 6.8. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 16.03.2022 REVENUE ASSESSMENT/RECOVERY ORDER

Disposed of without expressing any opinion on merits. ¶ 1

NOT DECIDED — RESTORATION OF THE ELECTRICITY CONNECTION DISCONNECTED ON 20.11.2021

Mandamus for restoration was not granted; the petition was relegated to a Para 6.8 objection. ¶ 1

